

Peetam Singh v. State of U.P. and another

High Court of Judicature at Allahabad · Division Bench · 7 March 2014 · WRIT - C No. 14318 of 2014 · **Writ dismissed; delayed 2004 billing not examined; payment left to Supply Code authority.**

HEADNOTE

A flour-mill consumer who had deposited charges under a 2012 High Court order and whose meter had been sealed sought a writ for non-issuance of bills and for payments of 2004. The Division Bench declined to examine the delayed 2004 billing, observed that current bills could be downloaded from the licensee's website, and dismissed the writ, leaving any payment grievance to the appropriate authority under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner operated a flour mill and earlier sought additional power. Writ Petition No. 8427 of 2012 was disposed of on 21 February 2012 permitting him to deposit the requisite amount with the licensee, which was to take consequential action. He then filed this writ stating that the deposits had been made and the meter sealed, but bills were not being issued. He also raised grievances about payments of the year 2004.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

delayed-billing-and-supply-code-forum

HOLDING

A writ agitating non-issuance of bills and payment grievances of 2004, after deposits and meter sealing under an earlier disposal for additional load, will not be used to examine such delayed billing. Current bills may be downloaded from the licensee's website; any grievance as to payment lies before the appropriate authority under the U.P. Electricity Supply Code, 2005. The writ is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 2004 PAYMENT CLAIMS AND OF THE CURRENT BILLS

Delayed 2004 billing declined; payment grievances left to the appropriate Supply Code authority. ¶ 1